

24PSCV04083 24PSCV04083

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Case Number: 24PSCV04083 Hearing Date: August 12, 2026 Dept: O

Tentative Ruling

(1)

MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR ORDER AWARD IN MONETARY SANCTIONS AGAINST DEFENDANT AND DEFENSE COUNSEL is GRANTED.

(2)

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT AND DEFENSE COUNSEL is GRANTED.

(3)

Motion TO COMPEL THE DEPOSITION OF BMW OF NORTH AMERICA LLC'S PERSON MOST QUALIFIED AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT AND DEFENSE COUNSEL is GRANTED.

Sanctions

are awarded in the reduced, total amount of \$4,725 (4.5 hours/per motion at \$350/hour).

Background

This

is a lemon law case arising from Plaintiffs Marco and Tina Macias' 2023 purchase of a 2024 BMW X7 that allegedly suffers from loss of power, vehicle stalling while driving, illumination of the drivetrain malfunction warning,

vehicle going into neutral while driving, illumination of the check engine light.

On

November 26, 2024, Plaintiffs filed suit.

On

January 3, 2025, Defendant filed its answer.

On

October 31, 2025, the parties signed a protective order.

On

March 4, 2026, the parties attended an IDC. According to the minute order, "Counsel for Defendant represents that they intend to conduct a search and provide additional discovery responses to the Plaintiff... Should the responses provided by Counsel for Defendant be deemed incomplete or insufficient, Counsel for Plaintiff is permitted to ... reserve a hearing on a Motion to Compel Discovery."

On

May 29, 2026, the instant motions were filed.

Oppositions

and replies have been filed, received, and reviewed.

Discussion [1]

Plaintiff

has filed three motions to compel further responses as there remain a handful of vitally important interrogatories that Plaintiffs are seeking this court's assistance with having Defendant respond to and Defendant has yet to offer its PMQ. After a review of the filings and understanding that Plaintiffs are seeking discovery of information and defenses that BMW will be using at trial, the court grants all motions. As the oppositions fail to meaningfully address the validity of any boilerplate responses, the court finds no substantial justification/circumstances exist to deny the request for sanctions.

Re: SROGs

As

set forth in the motion, Plaintiffs served Special Interrogatories, Set One on June 12, 2025; Defendant requested a few extensions, all of which were granted; BMW then served their first set of responses on September 26, 2025. Plaintiffs seek Code-compliant responses to Special Interrogatory Nos. 11, 24, 26, and 27 within 30 days of the Court's order.

SROGs

No. 11:

If YOU contend there were any circumstances outside of YOUR control which caused delays in

repairing

the SUBJECT VEHICLE, please state all facts upon which this contention is based.

SROG

No. 24:

IDENTIFY which BMW models use BMW part number 24-34-5-B33-AE6.

SROG

No. 26:

STATE whether new 2024 BMW X7 VEHICLES were still being distributed between October 2024–December 2024.

SROG

No. 27:

EXPLAIN how YOU ensured YOU had sufficient replacement parts to comply with the terms of YOUR warranties from September 2023–December 2024.

As

to all, Defendant asserts rather boilerplate objections. For example, as to SROGs No. 11, Defendant's supplemental response was that the inquiry was vague, ambiguous and unintelligible. In opposition, Defendant continues to object on the grounds that Plaintiffs are attempting to obtain broad discovery regarding BMW's inventory practices, parts allocation decisions, and other vehicle models. In short, their objections go to relevance.

But

as noted in reply, whether BMW continued distributing 2024 X7 vehicles while Plaintiffs' vehicle remained unrepaired for want of a specific part is relevant to BMW's knowledge, repair practices, and the alleged willfulness of any failure to comply with its warranty obligations. Plus, it is relevant to Plaintiffs' fraud claim that BMW issued and administered warranties without adequate provision for replacement parts. Moreover, Plaintiffs contend further responses are warranted notably as RFA No. 18 asks

that BMW to admit there were no conditions outside its control that led to its failure to repair the subject vehicle, but BMW's response was a denial, which infers that BMW will be claiming circumstances outside of their control prevented the repairs being completed within 30 days. Furthermore, Plaintiffs argue this case meets the statutory presumption for a reasonable number of repair opportunities as the repairs exceeded 30 days during the first 18 months or 18,000 miles.

To the extent that Defendant argues supplemental responses can be provided with more discovery, it is unclear how much more discovery Defendant needs. During meet and confer discussions, Defense counsel stated that additional information may be provided once they inspected the vehicle and once they deposed Plaintiffs. However, in February 2026, both the inspection and depositions occurred, but their April 30, 2026 amended responses to not reflect meaningful changes.

Therefore, the court as Plaintiffs have demonstrated the relevancy of each SROG, the motion is GRANTED.

Re: PMQ

Plaintiffs seek an order compelling Defendant to produce a witness for the deposition of their Person Most Qualified to testify as to all listed categories and produce all requested documents. The motion is made pursuant to CCP § 2025.450(a) on the grounds that BMW has failed to appear at their noticed deposition three times, two of which were dates provided by Defendant:

on August 1, 2025; on February 13, 2026; and on May 28, 2026. Despite multiple attempts to meet and confer and despite many empty promises to produce a witness, they have refused to provide alternate dates for deposition and have

repeatedly failed to appear for mutually agreed upon dates, forcing Plaintiffs to file the instant motion.

In opposition, Defendant maintains that it will produce a PMQ and it has consistently acknowledged its obligation to produce a corporate representative and has worked toward scheduling that deposition. However, the difficulty has arisen solely because the

identified witness has limited availability due to existing professional commitments.

But as noted in the reply, BMW's attempts to recharacterize this motion as a routine scheduling disagreement is rather disingenuous when Plaintiffs have sought BMW's PMQ deposition since June 2025. As noted in reply, the first setting was removed because BMW represented that the analyst who made the repurchase decision was on indefinite medical leave. Thereafter, BMW selected and agreed to the February 13, 2026 setting, then cancelled it days before the deposition because its office had failed to calendar the deposition. Then, BMW offered and agreed to the May 28, 2026 setting, then cancelled again the day before the deposition because the witness was unavailable. In fact, even in their opposition, BMW still does not offer alternative dates.

With that, the court grants the motion.

Therefore, the court orders BMW to produce one or more properly prepared PMQ witnesses, and all non-privileged responsive documents ordered produced, within 30 days of the court's order or on another prompt date certain selected by the court.

Re:
RFA

REQUEST

FOR ADMISSION NO. 6: Admit that in connection with the sale of the SUBJECT VEHICLE, YOU provided

PLAINTIFFS

with a basic limited warranty lasting 4 years from the date of purchase or 50,000 miles, whichever comes first.

REQUEST

FOR ADMISSION NO. 16: Admit YOU were aware the part needed to repair the SUBJECT VEHICLE was on backorder as of November 5, 2024.

REQUEST

FOR ADMISSION NO. 17: Admit PLAINTIFFS provided YOU with a reasonable number of opportunities to fix the SUBJECT VEHICLE.

REQUEST

FOR ADMISSION NO. 19: Admit the SUBJECT VEHICLE meets the California Civil Code Section 1793.22(b)

presumption

that a reasonable number of repair attempts to conform the vehicle to warranty were made.

As

to all, the separate statement provides that Defendant objects on the grounds that the requests are vague, ambiguous and overbroad as to Plaintiff's definition of "aware"; the requests violate the attorney-client, work-product and/or consulting expert privileges. Further, the request calls for information irrelevant to the subject matter of this action and is not reasonably calculated to lead to the discovery of admissible evidence.

But

the opposition does not seem to explain whether their responses have merit but instead, BMW offers only the generalized assertion that there is a "good-faith dispute" and asks the Court to deny sanctions. As with the discovery above, is difficult to see how there is a good faith dispute when the requests are relevant. For example, Defendant has in its possession all the repair orders, a repair history summary, warranty claims reports that all contain the information needed to confirm whether the facts of this case meet the presumption under CACI 3203. Plus, admitting or denying certain requests like RFA No. 21 will limit the issues to be litigated at trial as to three of Plaintiffs' claims:

Defendant's failure to commence repairs within a reasonable time and complete them within 30 days, the civil penalty claim pertaining to Defendant's willful failure to commence repairs within a reasonable time and complete them within

30 days.

Accordingly,

BMW's opposition confirms that it has no request-specific justification for those nonresponses.

Thus,

the motion is granted.

As

for sanctions, Plaintiffs seek a total of \$8,190 (\$1,900 for the PMQ motion + \$2,130 for the RFA motion + \$4,160 for the SROGs motion). The court that Plaintiffs' Counsel's declaration are somewhat unclear. For example, as to the SROGs motion, one declaration by Counsel Kamana states 6.4 hours were spent at \$500/hour (P20) but then Counsel Flores also files a declaration for the same motion stating 3.2 hours were spent at a billing rate of \$300. It appears Counsel Kamana was editing the motions and filings while Counsel Flores was drafting the filings. In any event, considering the totality of the circumstances, the court awards a total, reduced amount of \$4,725 (4.5 hours/per motion at \$350/hour).

Conclusion

Based

on the foregoing, all motions are granted and sanctions awarded against BMW of North America, LLC and its counsel of record, jointly and severally.

[1] It appears no separate statement has been filed by Defendant for any of the motions.

However, a separate statement is not required when a court has allowed the moving party to submit—in place of a separate statement—a concise outline of the discovery request and each response in dispute. Cal Rules of Ct 3.1345(b)(2). Here, the oppositions do not outline the discovery and the absence of addressing each request in perhaps further evidences the merits of each motion.